

IN THE CIRCUIT COURT OF THE TWENTIETH JUDICIAL CIRCUIT IN AND FOR
LEE COUNTY, FLORIDA

CRIMINAL DIVISION

MinutesState of Florida
vs
Zayas, Genesis

Case Number: 25-CF-014363

In Custody: ☐Date & Time: 6/9/2025 1:31 PM
Smart/Court Reporter: **Smart**
Jurisdiction: Cape Coral
Deputy Clerk: Leenerts
DOB: 11/27/2001Judge: Andrew P Marcus
State Attorney: T Guthrie 1027796
Defense Attorney: Steven Wetter
Race: White

Description	Statute/Degree	
☒ 1. AUTHORITY FIGURE SOLICITING SEXUAL CONDUCT OF STUDENT	800.101	Felony - Second Degree
☒ 2. AUTHORITY FIGURE SOLICITING SEXUAL CONDUCT OF STUDENT	800.101	Felony - Second Degree

Bond Number: PSC25-2367455 Bond Type: Pretrial Surety Bond Bond Amount: \$25,000.00

APPEARANCE

☒ Present w/attorney ☐ Via CCTV ☐ Present by/attorney ☐ Present w/o attorney
☐ Present w/interpreter ☐ Interpreter Services Requested-Language _____
☐ Failed to appear ☐ BW Ordered-Hold No Bond ☐ BW Ordered-Bond Set @ \$ _____
☐ ROR Revoked ☐ PTS Revoked
☐ Bond Estreature Ordered ☐ Set Aside Estreature ☐ Set Aside BW (Notify Clerk's Office/LCSO)

CONTINUANCE

☐ Cont. to _____ @ _____ ☐ AM ☐ PM in Courtroom ☐ 4A ☐ 4B ☐ 7A ☐ 7B ☐ 8A ☐ 8B ☐ ____
 Continued by ☐ State ☐ Defense ☐ Judge
 for ☐ ERC ☐ TR ☐ SE ☐ CMC ☐ PTC ☐ Plea ☐ MOT ☐ PTD ☐ PTD-6A ☐ VOP-DS
☐ Speedy Trial Waived ☐ Speedy Trial Tolloed _____
☐ Screen for ☐ MHC ☐ DC ☐ PTD
☒ Pre-Sentence Investigation/Pretrial Disposition Report ☐ Ordered ☒ Waived ☐ None

PLEA

☒ Guilty ☐ Ea Ct ☒ Ct(s) 1
☐ Nolo Contendere ☐ Ea Ct ☐ Ct(s) _____
☒ As Charged ☐ Amended Offense ☐ Lesser Offense ☐ Ea Ct ☒ Ct(s) 1
☐ State Orally Amends Information in Open Court as to Ct (s) _____
 Charge(s) _____ statute(s) _____ Degree _____ ☐ Misdemeanor ☐ Felony

☐ Formal Filing of Information is Waived ☐ Information Filed in Open Court

ADJUDICATION

☒ Adjudicated Guilty ☐ Ea Ct ☒ Ct(s) 1
☐ Adjudication Withheld ☐ Ea Ct ☐ Ct(s) _____
☐ Adjudicated Delinquent (Juvenile)

DISPOSITION

☒ State Orally Nolle Prose ☐ Ea Ct ☒ Ct(s) 2
☐ Dismissed ☐ Ea Ct ☐ Ct(s) _____
☐ Merged & Dismissed ☐ Merge Count(s) _____ into Count _____ for Sentencing & Dismissal

VERDICT

☐ Guilty by Jury ☐ Ct(s) _____ ☐ Not Guilty by Jury ☐ Ct(s) _____
☐ Mistrial _____

- ☐ Guilty of Lesser Offense _____ Statute _____
☐ Remanded into Custody w/out Bond

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact Brooke Dean, Operations Division Manager, whose office is located at Lee County Justice Center, 1700 Monroe Street, Fort Myers, Florida 33901, and whose telephone number is (239) 533-1771, at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

25-CF-014363

Continuation of proceedings on 6/9/2025

SENTENCE (Previously Pled ☐ Nolo ☐ Guilty on _____ Found Guilty by Jury on _____)

PRISON: _____ ☐ MM ☐ YY ☐ Each Ct ☐ Count(s) _____

☐ Ea Ct Concurrent ☐ and Concurrent w/ _____

☐ Consecutive ☐ Ct(s) _____

☐ Minimum Mandatory _____ ☐ MM ☐ YY ☐ Ct(s) _____

☐ Sentence Suspended

JAIL: _____ ☐ DD ☐ MM ☐ YY ☐ Each Ct ☐ Count(s) _____

☐ Ea Ct Concurrent ☐ and Concurrent w/ _____ ☐ Consecutive ☐ Ct(s) _____

☐ As a Condition of Probation ☐ Followed By Probation

☐ CTS _____ ☐ DD

☐ DOC to Compute Prison Time & Prior Jail Time

☐ Weekend Jail Time Fri 6PM to Sun 6 PM ☐ Day Work Program

☐ Beginning _____

☐ Days Prior to Sentencing

☐ Sentence Suspended

☐ Days from VOP ☐ VOCC Arrest on Split Sentence

COMM CONTROL: _____ ☐ MM ☐ YY ☐ Each Ct ☐ Count(s) _____

☐ Each Count Concurrent ☐ And Concurrent with Case(s) _____

PROBATION: 10 ☐ DD ☐ MM ☒ YY ☐ Each Ct ☒ Count(s) **1**

☐ Administrative Probation will terminate upon release from custody

☒ S-State ☐ R-County ☐ Drug Offender Probation ☐ Intensive Supervision

☐ Sex Offender Probation ☐ FDLE Fingerprints taken in Court (Sex Offenders/Predators)

☐ Each Count Concurrent ☐ and Concurrent with Case(s) _____ ☐ Consecutive ☐ Ct(s) _____

☐ One Time Cost of Supervision \$ _____

☐ May petition the Court for ☐ Early Termination ☐ Half early out of Supervision (Once all conditions are met)

☐ No early termination of Supervision ☐ May transfer probation to _____

☐ Curfew From _____ ☐ AM ☐ PM to _____ ☐ AM ☐ PM

☐ Curfew may be modified by Probation for treatment and/or work purposes

☒ Report to Probation today ☐ Report to Probation upon Release within _____

SENTENCING PROVISIONS

☐ Perform _____ hours of Community Service with a minimum of _____ hours per month ☐ May buy out at a rate of \$10/hour

☐ Sentenced as ☐ Habitual Felony Offender ☐ Habitual Violent Felony Offender ☐ Prison Release Re-Offender

☐ Youthful Offender ☐ Ct(s) _____

☐ Animal Abuser

☒ DNA Sample to the FDLE DNA database

☒ No Contact w/ Victim (s) **E.G. and J.S.; and no unsupervised contact with any minor children** ☐ No Violent Contact w/ Victim(s) _____

☐ DL SUSP ☐ DL REV _____ ☐ DD ☐ MM ☐ YY ☐ May Apply for Hardship License

☐ DUI Attend ☐ Victim Impact Panel ☐ Lee Memorial High Risk Driver's/Trauma Course

- ☐ DUI-Attend DUI School ☐ Phase 1 ☐ Phase 2 ☐ School to Determine Phase
☐ DUI -Impound Vehicle for ____ Days as a condition of Probation unless statutory conditions are met
☐ Ignition Interlock Device Ordered for ____ ☐ DD ☐ MM ☐ YY
☐ Be evaluated/screened for an approved Department of Corrections substance abuse treatment facility, program, or contract provider.
☐ Enter & complete outpatient aftercare ☐ Follow recommendations ☐ Complete on 1st attempt
☒ Complete a psychosexual evaluation ☒ Sign up within 30 days ☒ Follow recommendations
☐ No possession or consumption of illicit drugs or alcohol
☐ Drug Testing Without probable cause at own expense; during period of supervision; no positive or diluted results
☐ Remain in Custody until bed space becomes available
☐ Attend & Complete Program: ☐ RSAT ☐ Life Skills Program ☐ Anti-Theft School ☐ Mile Post Program
☐ Anger Management Program ☐ Batterer's Intervention Program ☐ Sign up within 30 days ☐ Sign up within ____ days
☐ Advent eLearning: ☐ Alcohol and Substance ☐ Marijuana Education ☐ Anger Management ☐ Parenting ☐ Shoplifting
☐ Traffic Safety ☐ Thinking for Change ☐ Theft ☐ _____
☐ Stay away from Place of Arrest _____
☐ Other _____
☐ Forfeit firearm/weapon for the benefit of State and/or law enforcement ☐ May not possess a firearm
☐ Remanded into Custody ☐ Release from Custody on this case only
☐ Pay \$1.00 per month during the term of probation or community control to a nonprofit organization established for the sole purpose of supplementing the rehabilitative efforts of the Department of Corrections.

25-CF-014363

REVOCATION HEARINGS: (☐ State ☐ County)

- ☐ Arraigned ☐ PL NG/Denies VOP/VOCC ☐ PL G/Admits VOP/VOCC
☐ Hrg set for ☐ Rev Hrg Cont to ☐ VOP Advisement Cont to
 Date _____ @ _____ ☐ AM ☐ PM in Courtroom ☐ 4A ☐ 7A ☐ 7B ☐ 8A ☐ 8B _____
☐ Adjudicated Guilty ☐ Ct(s) _____
☐ Adjudication Withheld ☐ Ct(s) _____
☐ Court finds defendant ☐ Guilty ☐ Not Guilty of violation(s); ruling read into Court record (no need to record each violation)
☐ Probation/Community Control ☐ Modified ☐ Reinstated ☐ Continue on Probation ☐ Revoked
☐ Probation extended for ____ ☐ MO ☐ YR from original term date
☐ Same terms and conditions apply as previously imposed
☐ All Standard, Special Terms & Conditions are terminated
☐ Dismiss Warrant _____ (☐ Notify Clerk's Office ☐ LCSO)

MOTIONS

- ☐ Set Bond ☐ Reduce Bond ☐ Revoke Bond ☐ Revoke PTR ☐ Revoke ROR
 Bond Set @ \$ _____
☐ Motion to Suppress ☐ Motion in Limine ☐ Competency Hearing/Status ☐ W/draw as Counsel ☐ W/draw Plea
☐ New Trial ☐ Continuance ☐ Dismiss ☐ Clarify or Correct Sentence ☐ Fingerprints
☐ Early Term of Probation ☐ State ☐ County ☐ Post Conviction (3.850) ☐ Nelson Farretta Hrg
☐ Expunge ☐ Seal (Outstanding monetary obligations must be addressed in court & the \$42.00 fee must be paid to Clerk's Office before case is officially expunged/sealed)
☐ Motion for Judgment of Acquittal _____
☐ Pretrial Supervision ☐ Bond Required ☐ Alt Bond ☐ GPS Monitoring ☐ Drug Testing ☐ Alcohol Monitor
☐ Other _____

MOTION RESULTS

- ☐ Granted ☐ Denied ☐ Reserves Ruling ☐ Withdrawn ☐ Cancelled prior to court ☐ Not Addressed
☐ Other _____

FINE ASSESSMENTS

- ☐ Fine \$ _____ (775.083) ☐ Ea Ct
 \$ _____ Ct 1; \$ _____ Ct 4
 \$ _____ Ct 2; \$ _____ Ct 5
 \$ _____ Ct 3; \$ _____ Ct 6
 \$ _____
☐ 5% Surcharge \$ _____ (938.04) ☐ Ea Ct

ATTORNEY FEES & SURCHARGES

- ☐ \$50.00 Public Def Application Fee (27.52)
 Add'l Application Fees \$ _____
 (Must be Addressed on the Record)
☐ Defense Attorney Costs at Conviction (938.29)
☐ \$50.00 ☐ \$100.00 ☐ Other \$ _____
☒ Cost of Prosecution (938.27)

\$ _____ Ct 1; \$ _____ Ct 4
\$ _____ Ct 2; \$ _____ Ct 5
\$ _____ Ct 3; \$ _____ Ct 6
\$ _____

☐ Fine Waived/Reduced 893.135 (4)

MANDATORY ASSESSMENTS

☒ Court Cost \$ _____
(775.083 / 938.01 / 938.03 / 938.05 / 938.06 / 939.185)

☒ \$413.00 ☐ \$383.00 ☐ Other \$ _____
If Ordered Under - Reason:

☒ \$2.00 Law Enforcement Education (938.15 w/ Ord.)
☐ \$33.00 Certain Traffic Offense Court Cost (318.17/318.18)
☐ \$135.00 DUI Add'l Court Costs (938.07)
☐ \$70.00 Reckless Driving Court Cost (318.18 / 316.192)

☐ \$65.00 Racing Court Cost (318.18)

☐ \$5.00 Leaving the Scene Add'l Court Cost (316.061)
☐ \$195.00 BUI Add'l Court Cost (938.07 / 327.35)

☐ \$201.00 Domestic Violence Surcharge (938.08)
Count(s) _____
☐ \$151.00 Rape Crisis Trust Fund (938.085)
Count(s) _____

☐ \$151.00 Crimes Against Minors (938.10)
Count(s) _____
☐ \$5000.00 Civil Penalty (796.07)

DISCRETIONARY ASSESSMENTS

☐ \$100.00 FDLE Trust Fund/State Crime Lab (938.055)
☒ \$ **906.60** Investigative Fee to: **CCPD**
☐ FMP ☐ LCS ☐ FDLE ☐ Statewide Pros
☐ Other _____ (938.27)
☐ Victim Restitution/Crime Compensation \$ _____

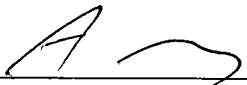
Comment(s):

Court ordered monetary obligations, excluding restitution and specific Department of Correction fees, shall be paid directly to the Clerk of Court

Unpaid financial obligations still remaining 90 days after payment due date will be referred by the Clerk of Court to a collection agency and an additional fee of up to 40% of the outstanding balance owed will be added at that time (28.246). Failure to comply with payment of financial obligations may result in a suspension of your driver license privilege (322.245). Mandatory assessments are imposed and shall be included in the judgment without regard to whether the assessment was announced in open court.

To pay by phone, call (239) 533-5000, Monday through Friday 8:00 a.m. – 4:30 p.m. or visit our website, www.leeclerk.org (If paying with Credit/Debit Card you will be charged a convenience fee.)

Judge Andrew P Marcus



Date

6/9/25

25-CF-014363

☐ \$50.00 ☒ \$100.00 ☐ Other \$ _____

RESTITUTION (PAYABLE TO THE DEPT. OF CORRECTIONS)

☒ Court Orders Restitution & Reserves on Amount _____
☐ Restitution \$ _____ to

☐ Minimum Payment of \$ _____ per Month to:

☐ As a Condition of Probation

☐ Restitution is Ordered Joint & Several with Co-defendant(s)

☐ Continue Restitution payments of:
\$ _____ each month (VOP)

DISPOSITION OF MONETARY OBLIGATIONS

☐ Monetary Obligations Due within _____ ☐ DD ☐ MM ☐ YY

☐ Monetary Obligations, excluding Restitution & Attorney Fees, & COS

Fees May Be Converted to Community Service at \$10 per Hour

☐ Monetary Obligations Reduced to Judgment (☐ excluding Restitution)

☐ Previous Only

☐ Monetary Obligations Referred to Clerk of Court Collections

☐ Monetary Obligations Due & Owing Carried Forward (VOP)

☐ Minimum Payment of \$ _____ per Month towards Financial Obligations